

DATA SHARING AGREEMENT

Dated: the date of the last signature below.

PARTIES

(1) ASHFIELD TRADING LIMITED (company number 16358723), whose registered office is at 20 Ashfield Avenue, Shipley, BD18 3AL, trading as Property Tax Partners (the "Supplier"); and

(2) the recipient firm or practitioner identified in the Recipient details block, and signing in the signature block, at the end of this agreement (the "Recipient"). The Recipient details block must be completed in full on or before signature; until it is completed, no agreement is formed,

each a "party" and together the "parties".

BACKGROUND

(A) The Supplier operates the website at propertytaxpartners.co.uk and related digital properties (the "Site"), through which people seeking specialist property-tax advice submit enquiries.

(B) The Supplier Refers enquiries to specialist accountancy and tax firms in its partner network. This agreement governs the sharing of the Personal Data contained in a Referred enquiry, between the Supplier and the Recipient as independent Controllers. It does not set the commercial terms of the referral, which the parties agree separately in writing.

(C) The Supplier collects each enquiry as a Controller. On a Referral the Recipient becomes an independent Controller and decides for itself whether and how to respond to and advise the enquirer. The parties share the data as independent Controllers; neither is the other's Processor and this is not an Article 28 contract.

(D) This agreement governs data protection only. The commercial terms of the referral arrangement are agreed separately in writing and form no part of this agreement.

IT IS AGREED as follows.

1. DEFINITIONS

1.1 In this agreement:

"Commissioner" means the Information Commission established under the Data (Use and Access) Act 2025 (and, before its establishment, the Information Commissioner), and any successor regulator, and references to the Commissioner are construed accordingly.

"Data Protection Legislation" means the UK GDPR, the Data Protection Act 2018 (as amended by the Data (Use and Access) Act 2025), and the Privacy and Electronic Communications (EC Directive) Regulations 2003 ("PECR"), in each case as amended or replaced from time to time. "Controller", "Processor", "Personal Data", "Personal Data Breach", "process" and related terms have the meanings given in the Data Protection Legislation.

"Details Block" means a party's completed details table in the signature section of this agreement.

"Nominated Address" means the address or secure endpoint the Recipient states in its Details Block for receiving Referrals.

"Permitted Purpose" means (a) enabling the Recipient, as a specialist firm, to receive and respond to the enquirer's property-tax enquiry and to provide the information or advice requested; and (b) the Supplier operating and administering its specialist partner network, including Referring a declined enquiry to another firm in the network for the purpose in (a).

"Referral" means the Supplier's disclosure of the Shared Data to the Nominated Address, and "Refer" and "Referred" are construed accordingly.

"Shared Data" means the Personal Data the Supplier discloses to the Recipient on a Referral: the enquirer's name; email address and/or telephone number; self-selected role and portfolio-size band; and any free-text enquiry message the enquirer chose to provide (which may include their property and tax circumstances). It is ordinary Personal Data only.

"Working Day" means a day other than a Saturday, Sunday or bank holiday in England.

1.2 Clause headings are for convenience only. References to legislation include any amendment or replacement.

2. STATUS AND PURPOSE

2.1 The parties share the Shared Data as separate and independent Controllers, each responsible for its own compliance with the Data Protection Legislation and each having regard to the Commissioner's codes and guidance. The parties are not joint controllers within Article 26 of the UK GDPR; each determines the purposes and means of its own processing of the Shared Data separately. The Recipient decides independently whether and how to respond to and advise each enquirer. Neither party is the other's Processor and this is not an Article 28 contract.

2.2 Each party will process the Shared Data only for the Permitted Purpose or a compatible purpose. Neither party will take a decision based solely on automated processing that has legal or similarly significant effects on an enquirer, except in compliance with the UK GDPR.

2.3 All processing takes place in the United Kingdom. Neither party will make a restricted transfer of the Shared Data outside the UK without a valid transfer mechanism under Articles 44 to 49 of the UK GDPR.

2.4 Each party is, or will be before the first Referral, registered with the Commissioner and has paid or will pay the data protection fee (to the extent required), will maintain that registration while this agreement is in force, and will provide its registration reference to the other on request.

2.5 The data protection contact in each party's Details Block is that party's single point of contact for matters under this agreement (including breach notification, data subject rights and cooperation on complaints). Each party will keep that contact current and will tell the other in writing of any change.

3. LAWFUL BASIS

3.1 The Supplier shares the Shared Data on the basis of the legitimate interests of the Supplier and the Recipient under Article 6(1)(f) of the UK GDPR (connecting an enquirer who has asked for specialist property-tax help with a specialist firm). The Supplier holds a documented Legitimate Interests Assessment ("LIA"). The Supplier does not rely on Article 6(1)(b) for the share, having no contract with the enquirer. The Recipient may additionally rely on Article 6(1)(b) to the extent its first contact with the enquirer is a step taken at the enquirer's request before entering into an engagement.

3.2 At the point of collection the Supplier tells the enquirer that their details will be shared with a firm from the Supplier's specialist partner network (disclosed as a category of recipient, not named) and that the firm will contact them. Because recipients are disclosed as a category, the Supplier decides which firm in its network receives a given enquiry, and an enquiry a firm declines may be Referred to another firm in the network for the same Permitted Purpose.

3.3 For each Referral, the Supplier will: (a) keep evidence of the lawful basis (and, where consent is relied on for any purpose, keep the consent version, the exact wording shown, the date and time, and any IP address); (b) tell enquirers they can withdraw any consent and give them a way to do so that is as easy as the original opt-in; (c) send the relevant lawful-basis information with each Referral; and (d) not Refer an enquiry where the required basis is missing or has been withdrawn.

3.4 The Recipient, as an independent Controller, will carry out and keep documented its own LIA for its receipt and processing of the Shared Data before the first Referral, and will review it on any material change. Each party will provide its LIA to the other, or to the Commissioner, on reasonable request.

4. SPECIAL CATEGORY AND CRIMINAL OFFENCE DATA

The Supplier will design the enquiry form to avoid collecting special category data (Article 9 of the UK GDPR) and Personal Data relating to criminal convictions or offences or alleged offences (Article 10), and to minimise sensitive detail in free-text fields. Each party will minimise or redact any such data where possible before sharing, and will process any special category data collected under an appropriate Article 9 condition (such as explicit consent) and any criminal-offence data under a lawful condition in Schedule 1 to the Data Protection Act 2018.

5. TRANSPARENCY

5.1 At the point of collection the Supplier will give the enquirer an Article 13 privacy notice covering: the Supplier's identity; that a firm from the Supplier's specialist partner network (a category of recipient, not named) is a recipient, and that if that firm is unable to help the enquiry may be passed to another firm in the network for the same purpose; the Permitted Purpose; the lawful basis and, for legitimate interests, the legitimate interests pursued; the retention period; the enquirer's rights (including the right to object under Article 21); and how to complain to the Supplier and to the Commissioner. The wording is set out in Annex B. Because the Supplier discloses recipients by category, the enquirer learns the identity of the specific receiving firm from that firm's own Article 14 notice at first contact.

5.2 The Recipient will: (a) give the enquirer Article 14 information, including its own identity as the receiving Controller and that it received the enquiry from Property Tax Partners (Ashfield Trading Limited), the Supplier's referral website at propertytaxpartners.co.uk, normally at first contact and within 1 month of receipt; and (b) only rely on the Article 14(5)(a) exemption if the Supplier's records show the enquirer already has that information. Each party keeps its published privacy policy consistent with this agreement.

6. RESPONSE VERSUS MARKETING (PECR)

The Recipient may contact the enquirer to provide the property-tax information or advice requested; this is a response to the enquirer's request, not direct marketing. Neither party will send other-service electronic marketing without a lawful basis under PECR, and the Recipient will not rely on the regulation 22(3) soft opt-in in respect of an enquiry unless it independently satisfies the soft opt-in conditions. Each party will honour opt-outs and objections, will keep its own suppression list, and will tell the other within 2 Working Days of any withdrawal, opt-out or objection, so that both can apply it.

7. DATA SPECIFICATION AND QUALITY

The Shared Data is limited to the fields in Annex A; neither party will share or require more than is necessary for the Permitted Purpose. The Supplier shares the data as submitted by the enquirer and does not warrant its accuracy; each party will take reasonable steps to keep the data it holds accurate and will tell the other of any inaccuracy without undue delay.

8. SECURITY

Each party will implement appropriate technical and organisational measures (Article 32 of the UK GDPR). The Shared Data is Referred by a secure method that encrypts it in transit (such as a TLS-secured connection or a secure portal or API), and not by unencrypted means, with access controls and with personnel bound by confidentiality.

9. PERSONAL DATA BREACH

On becoming aware of a Personal Data Breach affecting the Shared Data, a party will notify the other without undue delay and within 24 hours, with the information in Article 33(3) of the UK GDPR (the nature of the breach, the categories and approximate numbers affected, the likely consequences and the measures taken), so the other can meet its 72-hour notification to the Commissioner and any notification to data subjects. The parties will cooperate to investigate, contain and remediate, and each will keep a record of breaches affecting the Shared Data.

10. DATA SUBJECT RIGHTS AND COMPLAINTS

Each party will handle requests about the Personal Data it holds (access, rectification, erasure, restriction, portability and objection), will give the other reasonable assistance, will acknowledge a forwarded request within 5 Working Days, and will promptly forward a misdirected request, and each may make reasonable and proportionate searches and pause for clarification or identity verification. Each party will operate an accessible complaints procedure, will acknowledge a complaint within 30 days, will investigate proportionately and will inform the complainant of the outcome; where a complaint concerns the Shared Data, the parties will cooperate.

11. RETENTION, RECORDS AND REVIEW

11.1 The Supplier will delete or anonymise the Shared Data (the enquirer's contact details and any message) within 3 months of the Referral. It may keep only the minimum needed to evidence the lawful basis and consent and the transparency information provided, to support its own records and reconciliation, and to meet legal duties. Any records kept under this carve-out will be limited to what is strictly necessary, will be held under access controls, and will be retained for no longer than 6 years from the Referral, after which they will be deleted or anonymised.

11.2 The Recipient will retain the Shared Data only as long as necessary for the Permitted Purpose or its engagement with the enquirer, and will then delete or anonymise it.

11.3 On termination, each party will delete or return Shared Data no longer needed for a lawful purpose and will certify deletion on request, subject to any legal retention. Each party will keep its own Article 30 records of the sharing. Before the first Referral, each party will carry out and document its own Data Protection Impact Assessment ("DPIA") or screening assessment for its processing of the Shared Data. The parties will review this agreement at least once a year, and whenever there is a material change in the sharing, the lawful basis or the law.

12. NO ONWARD SHARING

12.1 The Recipient will not disclose the Shared Data to any other Controller, except (a) to the enquirer, or to a person the enquirer directs, in the course of providing the requested advice; or (b) as required by law.

12.2 The Recipient may use its own Processors under an Article 28 contract and remains responsible for any Processor it uses.

12.3 The Recipient will not sell, list-broker or further refer the Shared Data.

13. TERM AND TERMINATION

13.1 This agreement starts on the date of the last signature below and continues until terminated under clause 13.2 or until the parties cease to operate the referral arrangement, whichever is earlier.

13.2 Either party may terminate this agreement on 30 days' written notice. Either party may terminate immediately on written notice if the other commits a material breach of the Data Protection Legislation or of this agreement that it does not remedy within 14 days of written notice, or that cannot be remedied.

13.3 Clauses 8 to 12, 14, 15 and 16, and any provision that by its nature should survive, continue after termination.

14. LIABILITY

14.1 Subject to clauses 14.2 and 14.3, each party is responsible for, and will indemnify the other against, losses and claims (but not any regulatory penalty imposed on that other party, to the extent recovery would be contrary to public policy) arising from its own breach of the Data Protection Legislation or of this agreement in respect of the Shared Data, to the extent caused by that party.

14.2 Subject to clause 14.3, each party's total aggregate liability to the other under or in connection with this agreement is limited to £50,000 in aggregate. Neither party is liable for indirect or consequential loss, or for loss of profit, revenue or goodwill that is indirect or consequential. Each limitation and exclusion in this clause 14 is a separate and independent provision; if any is held unenforceable, the others continue to apply.

14.3 Nothing in this agreement limits or excludes liability for death or personal injury caused by negligence, for fraud, for a Controller's liability to the Commissioner or to a data subject, or for anything that cannot lawfully be limited or excluded.

15. GENERAL

15.1 Notices under this agreement will be in writing and sent to the data protection contact email in the party's Details Block. A notice by email is deemed received at the time of sending, provided the sender does not receive an automated delivery-failure message (or, if sent after 5.00pm on a Working Day or on a non-Working Day, at 9.00am on the next Working Day). This does not apply to the service of court proceedings.

15.2 No variation is effective unless in writing and signed by both parties.

15.3 Nothing in this agreement creates a partnership, joint venture or agency.

15.4 A person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce this agreement, except that this does not affect any right of a data subject that exists apart from that Act.

15.5 This agreement may be signed in counterparts, including by electronic signature, which together form one agreement.

15.6 This agreement is the entire agreement between the parties about the sharing of the Shared Data and supersedes all prior arrangements about that subject matter. It does not affect the separate commercial terms of the referral arrangement.

15.7 Neither party may assign, transfer, charge or otherwise deal with any of its rights or obligations under this agreement, or purport to do so, without the other's prior written consent (not to be unreasonably withheld or delayed).

15.8 If any provision of this agreement is or becomes invalid, illegal or unenforceable, it is deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision is deemed deleted. Any such modification or deletion does not affect the validity and enforceability of the rest of this agreement.

15.9 No failure or delay by a party to exercise any right or remedy under this agreement or by law is a waiver of that or any other right or remedy, nor does it prevent or restrict the further exercise of that or any other right or remedy. A waiver is effective only if in writing.

16. GOVERNING LAW AND JURISDICTION

This agreement and any dispute or claim arising out of it (including non-contractual disputes) are governed by the law of England and Wales, and the parties submit to the exclusive jurisdiction of its courts.

SIGNATURES

SIGNED for and on behalf of the parties:

Supplier: Ashfield Trading Limited	Recipient (the firm or practitioner named in the Recipient details block)
Signature:	Signature:
Name: Mohammed Junayd Moughal	Name:
Title: Director	Title:
Date:	Date:

Recipient details

Item	Recipient
Full legal name and, if a body corporate or LLP, its registered number (for a sole practitioner, the individual's full name and any trading name)	
Nominated Address (secure endpoint or email for receiving Referrals)	
Notices and data protection contact email	
Published privacy policy URL	
ICO registration reference	

Supplier details

Item	Supplier
Firm	Ashfield Trading Limited (company number 16358723), trading as Property Tax Partners
Data protection contact	Mohammed Junayd Moughal, junayd@ashfieldtrading.com
Published privacy policy URL	https://www.propertytaxpartners.co.uk/privacy-policy
ICO registration reference	Available on request

ANNEX A: DATA SPECIFICATION

Item	Detail
Data subjects	People enquiring through the Site (landlords, property investors and others seeking property-tax advice).

Personal Data shared	Name; email address and/or telephone number; the enquirer's self-selected role; self-selected portfolio-size band; and the enquiry message, which may include the enquirer's property and tax circumstances. General Personal Data only.
Special category data	None intended to be collected or shared (clause 4).
Direction	Supplier to Recipient (one way).
Lawful basis (Supplier share)	Legitimate interests, Article 6(1)(f), with a documented LIA (clause 3).
Lawful basis (Recipient receipt)	Legitimate interests, Article 6(1)(f), and Article 6(1)(b) for pre-contractual steps taken at the enquirer's request, each with a documented LIA.
Method of transfer	Secure forwarding to the Nominated Address, encrypted in transit, with the relevant lawful-basis information.
Retention (Supplier)	Delete or anonymise the Shared Data within 3 months of the Referral (evidence and records carved out, clause 11.1).
Retention (Recipient)	As long as necessary for the Permitted Purpose or engagement, then delete or anonymise.

ANNEX B: PRIVACY NOTICE WORDING

B.1 Category-based disclosure. The Site identifies recipients only as a category, "a firm from our specialist partner network", and does not name the individual receiving firm.

B.2 Enquiry-form acknowledgement. The lawful basis for the share is legitimate interests (clause 3), and submitting the enquiry is the affirmative act, so the wording is presented as an acknowledgement rather than a consent tick-box. On each enquiry form the Supplier will display:

> "To answer your enquiry, your details may be shared with a firm from our specialist partner network who will contact you. If that firm is unable to help, your details may be passed to another firm in the network for the same purpose. By submitting this enquiry you confirm you understand this. See our Privacy Policy."

The receiving firm identifies itself to the enquirer in its own Article 14 notice at first contact (clause 5.2); the Site does not name it and does not link to any individual firm's privacy policy.

B.3 The Supplier may make amendments necessary to keep this wording legally accurate, provided that no amendment removes or materially weakens the disclosure that data is shared with the partner network without the Recipient's prior written consent (not to be unreasonably withheld or delayed).

B.4 Privacy notice. The Supplier's privacy policy will identify the Supplier; will describe the recipients as a category ("firms in our specialist partner network: accountancy and tax advisers"), without naming individual firms; and will give the Permitted Purpose, the lawful basis and, for legitimate interests, the legitimate interests pursued, the retention period, the enquirer's rights (including the right to object) and how to complain to the Supplier and to the Commissioner. It will explain that the specific firm contacting the enquirer will identify itself and provide its own privacy information.